

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-1898

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
KRISTEN MASON, LPC NO. 5727,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("Board") and Kristen Mason ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case No. 2012-1898. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. In or around August 2011, Respondent documented and billed for forty one (41) treatment sessions that she did not conduct.
 - b. Respondent admitted to a history of substance abuse.
 - c. On or around January 6, 2014, Respondent submitted to a mental status evaluation, and the evaluator concluded that Respondent is not safe to practice counseling with reasonable skill and safety to patients without monitoring under a treatment program.

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(e), (g) and (u), C.R.S.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license shall be placed on probation for a minimum period of three (3) years. Credit toward satisfying the period of probation shall be given only during such periods of time that Respondent is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

- a. Respondent is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado; and
- b. Respondent is not actively participating in a Board-approved peer assistance services program as set forth below in paragraph 8 of this Order; and
- c. Respondent is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

8. As a term of this Order and Respondent's probationary status, Respondent shall enter into and successfully complete a contract with Peer Assistance Services ("PAS") or a Board-approved alternative program for a minimum period of three (3) years, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

a. Urine/Blood Screens. If required as a term of her contract with PAS or the Board-approved alternative program, Respondent shall submit to full panel urine or blood tests during participation in PAS or the Board-approved alternative program, as ordered by the Board, Respondent's employer, or Respondent's treatment program monitor, at a frequency determined by Respondent's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Respondent must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Respondent's treatment program with Respondent's application for discharge of the probation period.

b. Other Requirements. Respondent shall comply fully and in a timely manner with all requirements, recommendations and directions of the treatment program, as administered by PAS or the Board-approved alternative treatment program. Requirements, recommendations, and directions shall include but may not be limited to:

- i. Submission by Respondent to such examinations as PAS or the Board-approved alternative program may deem appropriate to determine Respondent's physical or mental condition or Respondent's professional qualifications (the parameters of any such examination shall be specified to the extent possible to pinpoint the underlying condition for which the examination is being required);
 - ii. The taking by Respondent of such therapy courses or training or education as may be needed to correct deficiencies found by such examination;
 - iii. The review or supervision of Respondent's practice as may be necessary to determine the quality of Respondent's practice and to correct deficiencies therein; and
 - iv. The imposition of restrictions upon the nature of Respondent's practice to assure that Respondent does not practice beyond the limits of her capabilities.
- c. Releases. Respondent hereby waives any right or claim of confidentiality to any information, test results or other data pertaining to Respondent's treatment progress, or lack thereof, with PAS or the Board-approved alternative treatment program, and will execute a Release authorizing PAS or the Board-approved alternative treatment program to release any and all information pertaining to Respondent's case to the Board upon its request. Respondent shall keep all releases current and in effect.
- d. Completion of Program. If Respondent satisfactorily completes the treatment program, verification to the Board by PAS or the Board-approved alternative treatment program of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to verify Respondent's completion of treatment. It is Respondent's responsibility to ensure that PAS or the Board-approved alternative treatment program submits verification to the Board of completion of treatment.
- e. Withdrawal from Program. Respondent must immediately notify the Board in writing if Respondent withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Respondent's treatment program.

PSYCHOTHERAPY

9. During the term of probation, and as part of her contract with PAS, Respondent shall undergo psychotherapy with a mental health provider approved by the Board ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed therapists for the Board's approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;

- b. It is recommended that the therapist have a minimum of five years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

10. Respondent must have a therapist approved by the Board within two months after entering into a contract with PAS. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a therapist is approved.

11. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of PAS and/or the therapist; and
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to PAS and Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and
- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

12. If, at any time, the therapist is of the opinion that Respondent is practicing professional counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to PAS and Respondent when s/he sends the report to the Board. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

13. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another Board-approved therapist prior to the termination, Respondent shall cease the practice of professional counseling until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Board in accordance with this Order.

14. Respondent cannot practice professional counseling during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

PRACTICE MONITOR

15. During the term of probation, and as part of her contract with PAS, Respondent's practice shall be monitored by a practice monitor. If the Board has not already approved Respondent's practice monitor, Respondent must follow the same steps as outlined in paragraph 17 above in order to secure a practice monitor.

16. Respondent must have a practice monitor approved by the Board within two months after entering into a contract with PAS. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

17. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

18. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

19. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

20. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

21. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board,

in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

22. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

23. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

CONTINUING EDUCATION

24. Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses each year in the area of recordkeeping. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

25. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

26. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

27. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

28. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-

4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

31. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

32. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

33. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

34. Respondent shall obey all state and federal laws while this Order is in effect.

35. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

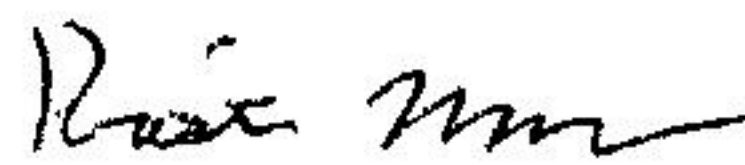
36. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

37. This Order shall be admissible as evidence at any hearing held before the Board.

38. This Order shall be a public record in the custody of the Board.

ACCEPTED AND AGREED BY:

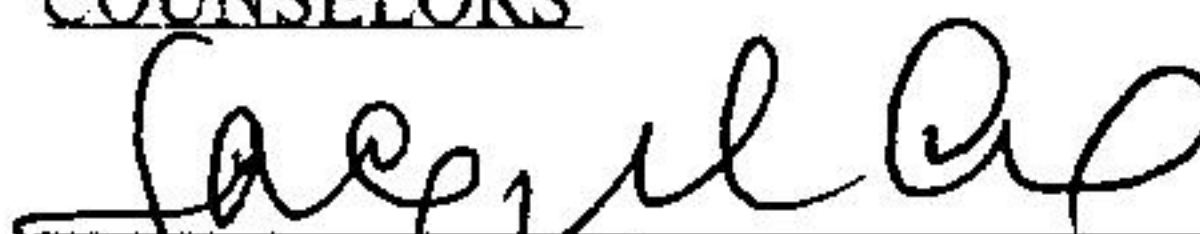
RESPONDENT



KRISTEN MASON
LPC NO. 5727

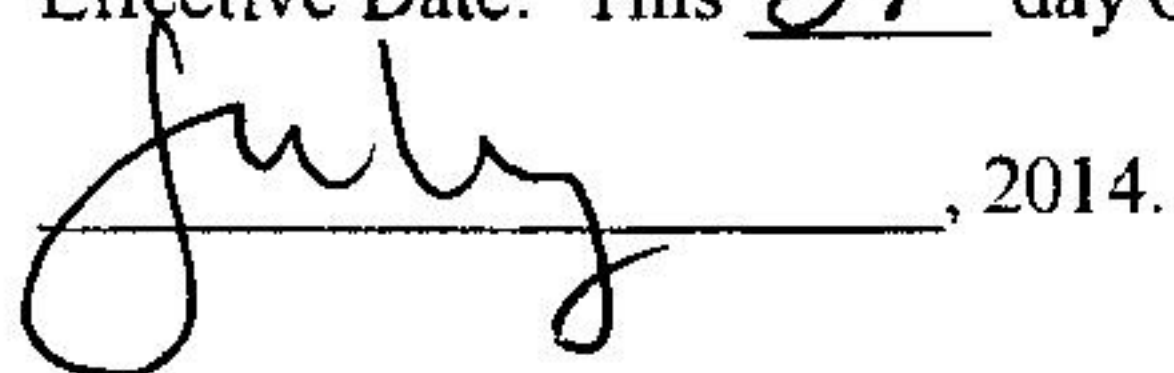
ACCEPTED AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELORS



JACQUILINE ARCELIN
Program Director

Effective Date: This 21st day of



, 2014.